

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ariel Courage	Team: Squad #6	CCRB Case #: 201506053	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Thursday, 07/09/2015 8:40 PM	Location of Incident: Avenue D and Flatbush Avenue and 70th Precinct stationhouse	Precinct: 70	18 Mo. SOL 1/9/2017	EO SOL 1/9/2017	
Date/Time CV Reported Thu, 07/09/2015 8:40 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 07/22/2015 2:12 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM James Grant	8377	954890	PBBS
2. POM Brian Jarrette	22927	954974	PBBS
3. An officer			
4. SGT Joshua Bienvenue	03464	945511	PBBS
5. POM John Panik	2510	955292	PBBS
6. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Carlo Cassata	4950	954614	PBBS
2. POM Raymond Buono	2800	954578	PBBS
3. POM Yuriy Zevelev	10007	955693	PBBS

Officer(s)	Allegation	Investigator Recommendation
A.POM James Grant	Force: In the vicinity of Avenue D and Flatbush Avenue in Brooklyn, PO James Grant used physical force against § 87(2)(b)	
B.POM Brian Jarrette	Force: In the vicinity of Avenue D and Flatbush Avenue in Brooklyn, PO Brian Jarrette used physical force against § 87(2)(b)	
C.POM James Grant	Discourtesy: In the vicinity of Avenue D and Flatbush Avenue in Brooklyn, PO James Grant spoke discourteously to § 87(2)(b)	
D.POM James Grant	Off. Language: In the vicinity of Avenue D and Flatbush Avenue in Brooklyn, PO James Grant made remarks to § 87(2)(b) based upon race.	
E.SGT Joshua Bienvenue	Discourtesy: In the vicinity of Avenue D and Flatbush Avenue in Brooklyn, Sgt. Joshua Bienvenue spoke discourteously to § 87(2)(b)	
F.SGT Joshua Bienvenue	Force: In the vicinity of Avenue D and Flatbush Avenue in Brooklyn, Sgt. Joshua Bienvenue used physical force against § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
G. Officers	Force: In the vicinity of Avenue D and Flatbush Avenue in Brooklyn, officers used physical force against § 87(2)(b) [REDACTED]	[REDACTED]
H.POM John Panik	Force: In the vicinity of Avenue D and Flatbush Avenue in Brooklyn, PO John Panik used physical force against § 87(2)(b) [REDACTED]	[REDACTED]
I. An officer	Discourtesy: Inside the 70th Precinct stationhouse, an officer spoke rudely to § 87(2)(b) [REDACTED]	[REDACTED]

Case Summary

§ 87(2)(g)

On July 10, 2015, Sgt. Tsang of Patrol Borough Brooklyn South called IAB to report this incident. It was received at the CCRB on July 22, 2015.

On July 9, 2015, PO James Grant and PO Brian Jarrette, both of Patrol Borough Brooklyn South, observed § 87(2)(b) riding his bicycle against traffic and through a steady red light at the intersection of Avenue D and Flatbush Avenue in Brooklyn. PO Grant and PO Jarrette both knew that § 87(2)(b) had an open arrest warrant, recognizing him both from their prior interactions with him and from a poster associated with this open arrest warrant that had been displayed in the 70th Precinct stationhouse. § 87(2)(b) stopped at the southwest corner of the intersection of Avenue D and Flatbush Avenue. PO Grant and PO Jarrette approached § 87(2)(b) and informed him that he was under arrest. § 87(2)(b) fled on foot from the officers across Flatbush Avenue to the southeast corner of its intersection with Avenue D.

§ 87(2)(b) alleged that PO Grant and PO Jarrette tackled him to the ground (**Allegation A and B**). After § 87(2)(b) was handcuffed, he requested that officers read him his Miranda rights, to which PO Grant allegedly replied, “Fuck you and your rights,” “Shut the fuck up,” and, “Black piece of shit, you made me run for no fucking reason” (**Allegations C and D**). Additional officers, including PO John Panik, PO Raymond Buono, PO Yuriy Zevelez, and Sgt. Joseph Bienvenue, all of Patrol Borough Brooklyn South, responded. Sgt. Bienvenue allegedly told § 87(2)(b) “Shut the fuck up” (**Allegation E**).

While placing § 87(2)(b) into Sgt. Bienvenue’s police vehicle for transport to the 70th Precinct stationhouse, PO Grant (**subsumed under Allegation A**), Sgt. Bienvenue (**Allegation F**), and officers who § 87(2)(b) could not identify (**Allegation G**) all punched § 87(2)(b) in his face repeatedly. PO Jarrette acknowledged that he assisted in pushing § 87(2)(b) into the marked police vehicle (**subsumed under Allegation B**), as did PO John Panik (**Allegation H**).

§ 87(2)(b) was brought to the 70th Precinct stationhouse, where he was placed in the holding cells. While in the holding cells, § 87(2)(b) screamed for medical attention. An officer who § 87(2)(b) could not see and whose voice he did not recognize yelled, “Shut the fuck up,” to him (**Allegation I**).

PO Jarrette and PO Cassata then transported § 87(2)(b) to § 87(2)(b) with EMS. Upon arrival at § 87(2)(b) § 87(2)(b) became irate. When PO Jarrette and PO Cassata attempted to restrain him, § 87(2)(b) bit both officers.

§ 87(2)(b) was initially arrested and charged with § 87(2)(b) in (BR 01). § 87(2)(b) was again arrested at § 87(2)(b) and charged with § 87(2)(b) (BR 02).

§ 87(2)(b) made allegations of physical force, discourtesy, and restriction of breathing against a member of § 87(2)(b) police. § 87(2)(g)

The investigation was unable to locate any video footage of this incident.

Mediation, Civil and Criminal Histories

- This case was ineligible for mediation due to § 87(2)(b)'s arrest.
- On November 10, 2015, a Notice of Claim was submitted to the Comptroller's Office (BR 03). The results will be added to the case file upon receipt.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed one prior CCRB complaint (BR 05):
 - § 87(2)(b).
- PO Grant has been a member of the service for 2 years. This is the first CCRB complaint against him.
- PO Jarrette has been a member of the service for 2 years. This is the first CCRB complaint against him.
- Sgt. Bienvenue has been a member of the service for 7 years. There are seven prior allegations against him across four cases that occurred between 2009 and the present, the following of which have been substantiated:
 - In CCRB case 201013994, allegations of a frisk, search of person, and retaliatory summons were substantiated. The Board recommended charges. Sgt. Bienvenue received instructions for the frisk and retaliatory summons allegation, and no disciplinary action for the search of person.

Potential Issues

- Field Work was performed for this case on July 23, 2015 (BR 06) and again on July 28, 2015 (BR 07). No video footage or witnesses were located.
- § 87(2)(b) knew of only one witness to this incident. § 87(2)(b) could not provide his full name, and knew him only as "§ 87(2)(b)". § 87(2)(b) believed that "§ 87(2)(b)" had video footage of his arrest at Avenue D and Flatbush Avenue. § 87(2)(b) provided a cell phone number for him. On August 17, 2015, the undersigned attempted to contact "§ 87(2)(b)" and left a voice message requesting a call back. On August 18, 2015, the undersigned again called "§ 87(2)(b)" who provided his name as § 87(2)(b) and said he did not have time to provide a telephone statement, and refused to provide his other information, but who took the undersigned's email address and promised to email the video footage and to provide a statement at a future date. § 87(2)(b) did not send the video footage as promised. Between August 19, 2015, and August 21, 2015, three further calls were placed to § 87(2)(b). Each time the undersigned left voice messages. On September 14, 2015, the undersigned a sixth time called § 87(2)(b) who said he could provide the video that week. However, when the undersigned attempted to schedule an

appointment and to confirm contact information for § 87(2)(b) he refused to provide it or to schedule an appointment, and said he would prefer that the undersigned call him back on September 15, 2015. On September 15, 2015, as per § 87(2)(b)'s request, the undersigned called him a seventh time and reached his voicemail and left a voice message requesting a call back. To date, § 87(2)(b) has not contacted the CCRB to provide video footage or a statement.

- § 87(2)(b) thought his attorney, § 87(2)(b), might have video footage of this incident. When contacted on August 18, 2015, § 87(2)(b) said he did not have any video footage of this incident.

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) described the officer who allegedly tackled him to the ground, punched him, and who allegedly said to him, "Fuck you and your rights," "Shut the fuck up," and, "Black piece of shit, you made me run for no fucking reason," as a white male, in his late 20s to early 30s, with average build, 5'8" tall, and in uniform. The investigation identified the two officers who initiated § 87(2)(b)'s first arrest as PO Jarrette and PO Grant. PO Jarrette is § 87(2)(b)-old Hispanic male, 6'0" tall, 174 pounds, with black hair and brown eyes. PO Grant is a § 87(2)(b)-old white male, 5'6" tall, 160 pounds, with brown hair and eyes. PO Grant more closely matches the description provided by § 87(2)(b).
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
- § 87(2)(b) also alleged that that officer matching PO Jarrette's description participated in tackling him to the ground. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
- § 87(2)(b) alleged that an officer, described as a white male with fat build, 5'8" tall, in uniform, who was balding, and who he could not otherwise describe, told him, "Shut the fuck up," and punched him in his face. § 87(2)(b) also noted that this officer later drove him to the 70th Precinct stationhouse. While there were multiple officers on scene who could potentially match this description, including PO Buono, a white male, 5'10" tall, 230 pounds, with balding brown hair and glasses, and PO Panik, a white male, 5'11" tall, 230 pounds, with short brown hair, the investigation concluded that Sgt. Bienvenue and his operator, PO Zevelez, drove § 87(2)(b) to the 70th Precinct stationhouse. PO Zevelez, a white male, 6'2" tall, 170 pounds, with black hair, does not match the given description, § 87(2)(g). This leaves Sgt. Bienvenue, a white male, 5'6" tall, 190 pounds, entirely bald, who could loosely fit the description provided by § 87(2)(b).
§ 87(2)(b) § 87(2)(g)
§ 87(2)(b)
- § 87(2)(b) alleged that in addition to PO Grant and Sgt. Bienvenue, there were additional officers who he could neither describe nor estimate the number of, whom participated in punching him. Although PO Jarrette, Sgt. Bienvenue, and PO Panik also

acknowledged participating in placing § 87(2)(b) into Sgt. Bienvenue's vehicle, all of them denied punching § 87(2)(b) § 87(2)(g)

- § 87(2)(b) alleged that once he was placed inside the 70th Precinct stationhouse holding cells, an officer who he could not see, and whose voice he could not identify, yelled, "Shut the fuck up," to him. None of the officers interviewed acknowledged saying this. § 87(2)(g)

Allegations Not Pleaded

- § 87(2)(g)

Allegation A – Force: In the vicinity of Avenue D and Flatbush Avenue in Brooklyn, PO James Grant used physical force against § 87(2)(b)

Allegation B – Force: In the vicinity of Avenue D and Flatbush Avenue in Brooklyn, PO Brian Jarrette used physical force against § 87(2)(b)

Allegation F – Force: In the vicinity of Avenue D and Flatbush Avenue in Brooklyn, Sgt. Joseph Bienvenue used physical force against § 87(2)(b)

Allegation G – Force: In the vicinity of Avenue D and Flatbush Avenue in Brooklyn, Officers used physical force against § 87(2)(b)

Allegation H – Force: In the vicinity of Avenue D and Flatbush Avenue in Brooklyn, PO John Panik used physical force against § 87(2)(b)

It is undisputed that PO Grant and PO Jarrette approached § 87(2)(b) and informed him that he was under arrest. It is also undisputed that § 87(2)(b) then fled PO Grant and PO Jarrette on foot. It is also undisputed that § 87(2)(b) at some point was on the ground, § 87(2)(g). It is undisputed that once on the ground PO Grant and PO Jarrette were able to handcuff § 87(2)(b) and that § 87(2)(b) subsequently resisted officers' attempts to place him in a marked vehicle for transport.

§ 87(2)(b) (BR 08) said that he was riding his bicycle on Ditmas Avenue towards Flatbush Avenue, heading home. § 87(2)(b) denied riding his bicycle against traffic, or riding through a steady red light. § 87(2)(b) stopped his bicycle at the southwest corner of Ditmas Avenue and Flatbush Avenue and walked it onto the sidewalk to speak with an acquaintance he could not identify. While speaking to this acquaintance, PO Grant and PO Jarrette, both of whom § 87(2)(b) recognized from prior interactions and from seeing them in the area, approached § 87(2)(b). PO Grant told § 87(2)(b) "Put your hands behind your back." § 87(2)(b) said, "For what?" § 87(2)(b) then fled across Flatbush Avenue towards its southeast corner, where there is a pharmacy and a hair salon.

§ 87(2)(b) then stopped running of his own volition, as he realized that he "did not know why he was running," and because he has asthma. § 87(2)(b) initially said that PO Grant and PO Jarrette grabbed § 87(2)(b) by his arms from behind, pulled them behind his back, and

tripped him face-first onto the ground before handcuffing him. § 87(2)(b) later in his interview said that PO Grant and PO Jarrette handcuffed him before bringing him face-down to the ground. § 87(2)(b) struck his left knee against the pavement as he was brought to the ground, resulting in pain and bruises.

After § 87(2)(b) was on the ground, more officers, including Sgt. Bienvenue and PO Panik, responded to PO Grant's request via radio for additional units. § 87(2)(b) alleged that PO Grant and Sgt. Bienvenue "beat him up," which he then clarified to mean that PO Grant and Sgt. Bienvenue lifted him by his arms and walked him towards a marked police vehicle. § 87(2)(b) wriggled his arms in his handcuffs, trying to loosen them around his wrists, as he felt they were too tight. § 87(2)(b) acknowledged that PO Grant might have thought that he was trying to elbow him based on the manner in which he was wriggling, but § 87(2)(b) denied that he was deliberately trying to do so. § 87(2)(b) insisted that he did not want to be brought to the 70th Precinct stationhouse because he wanted to be brought directly to the hospital. § 87(2)(b) acknowledged that he spat on the ground, though he denied spitting at officers. § 87(2)(b) also braced his feet against the open door of the police vehicle.

PO Grant, Sgt. Bienvenue, as well as other officers who § 87(2)(b) could not describe, leaned § 87(2)(b) against the side of the marked RMP and then again brought § 87(2)(b) onto the ground. PO Grant, Sgt. Bienvenue, and a number of unidentified officers – § 87(2)(b) could not tell how many – then punched § 87(2)(b) on the front of his torso and on his face, resulting in a cut to his lip that bled openly onto his t-shirt. § 87(2)(b) sustained no other injuries. PO Grant, Sgt. Bienvenue, and other officers then lifted § 87(2)(b) so that he was horizontal and threw him into the police vehicle so that § 87(2)(b) landed on his left side, which did not result in any injuries.

EMS was called to the 70th Precinct stationhouse. EMS noted that § 87(2)(b) had an abrasion on his elbow, but no other injuries (BR 12). EMS transported § 87(2)(b) to § 87(2)(b) where he complained, "I was beat up by the police and I have pain to both my knees, legs, elbows, and wrists hurt from the cuffs." EMS and the NYPD informed hospital staff that § 87(2)(b) fell while running from the police. § 87(2)(b) was initially calm, but between § 87(2)(b) became combative when medical staff attempted to examine him, saying, "Get the fuck away from me. I don't want anything from you. I just want to see a doctor. Wait 'til the day I see you on the street, bitch. If I wasn't in handcuffs I would knock you the fuck out. Get me a doctor now." § 87(2)(b) also threatened to shoot the nurses, shoot the doctors, shoot the cops, and to "come back and kill you all." § 87(2)(b) eventually was sedated. X-rays were eventually performed of his knee and no injury was noted. It was noted that § 87(2)(b) had "likely contusions," to his knees, but otherwise no lacerations or hematomas were observed to him. § 87(2)(b) was diagnosed with generalized body pain, was given Ibuprofen, and was discharged (BR 12).

§ 87(2)(b)'s arrest photograph depicts no cut to his lower lip, or any other injury (BR 13). His shirt is not fully shown in his arrest photograph, § 87(2)(g) there are no blood stains on the part of the shirt that is depicted. § 87(2)(b)'s medical treatment of prisoner form notes that § 87(2)(b) complained of elbow pain and that he fell during his arrest (BR 14).

As discussed above, the investigation was unable to obtain any statements from witnesses to § 87(2)(b)'s arrest or any video footage.

PO Grant (BR 09) said that he observed § 87(2)(b) ride his bicycle against traffic and run through a steady red light. Upon initial observation, PO Grant also recognized § 87(2)(b)

PO Grant is familiar with § 87(2)(b) as they have interacted in the past. PO Grant has never arrested § 87(2)(b) himself, but noted that he is known within the 70th Precinct. PO Grant also indicated that for about one week prior to this incident, he had observed a wanted poster for § 87(2)(b) inside the 70th Precinct stationhouse. A supervisor at the 70th Precinct who PO Grant could not identify had verbally informed him that § 87(2)(b) had an open warrant. PO Grant was unsure if the wanted poster and the warrant his supervisor referred to were one in the same. PO Grant noted that after § 87(2)(b) was stopped, it was confirmed that he had an open bench warrant, § 87(2)(b), as documented on his arrest report (BR 01). Based upon this, PO Grant considered § 87(2)(b) to be under arrest.

§ 87(2)(b) stopped his bicycle at the southwest corner of the intersection of Avenue D and Flatbush Avenue. PO Grant believed that § 87(2)(b) was planning to enter a deli there. PO Grant and PO Jarrette approached § 87(2)(b). PO Grant informed § 87(2)(b) that he had committed traffic violations on his bicycle, and that he would need to return with them to the 70th Precinct stationhouse because he had an open warrant. PO Grant was unsure if § 87(2)(b) responded to PO Grant before he fled on foot across Flatbush Avenue to the southwest corner of Avenue D and Flatbush Avenue. PO Grant pursued § 87(2)(b) at a distance of about seven feet, or about two or three feet behind PO Jarrette. When § 87(2)(b) was in between two vehicles parked at the curb on the southwest corner of Avenue D and Flatbush Avenue, § 87(2)(b) slipped and fell. Neither PO Grant nor PO Jarrette was making contact with § 87(2)(b) when he fell, and neither of them ever deliberately brought § 87(2)(b) to the ground. PO Grant did not know what caused § 87(2)(b) to fall specifically, but noted that the pavement may have been slippery, as it had been raining; indeed, PO Grant also himself slipped and fell on the wet pavement before getting up to assist PO Jarrette in handcuffing § 87(2)(b) who was still at that point on the ground.

PO Jarrette (BR 10) closely corroborated PO Grant's account.

PO Jarrette (BR 10), PO Grant (BR 09), Sgt. Bienvenue (BR 15), and PO Panik (BR 16) all indicated that § 87(2)(b) then resisted being placed in the vehicle by kicking the RMP door, which caused a dent to its side. § 87(2)(b) was charged with criminal mischief as a result (BR 01). § 87(2)(b) also spat at PO Panik, so that his spit landed on PO Panik's arm; § 87(2)(b) was charged with § 87(2)(b) (BR 01). PO Panik did not seek an exposure report or Line of Duty status as the spit did not make contact with any open wounds, his mouth, or eyes, or any other area of his body where disease was likely to be transmitted. PO Jarrette, PO Grant, Sgt. Bienvenue, and PO Panik all acknowledged trying to push § 87(2)(b) back-first into the police vehicle to sit down, and said that after § 87(2)(b) kicked the RMP door he continued to resist by flailing his body about and bracing his legs against the door. Sgt. Bienvenue (BR 15) indicated that he eventually came around from the opposite side of the RMP and pulled § 87(2)(b) into the vehicle by gripping his waist. Sgt. Bienvenue believed other officers may have lifted § 87(2)(b)'s legs to place him lying on his side in the RMP. All officers denied punching § 87(2)(b) and bringing him again to the ground outside of the RMP.

None of the officers observed any injuries to § 87(2)(b) except for PO Cassata (BR 18), who was not at the scene of § 87(2)(b)'s arrest, and who said he saw § 87(2)(b) in the holding cells at the 70th Precinct stationhouse and observed that he had cuts and scrapes to his knees, which § 87(2)(b) told him were sustained from being brought to the ground.

Officers must use the minimum force necessary to effect an arrest. Patrol Guide Procedure 203-11 (BR 11)

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

Allegation C – Discourtesy: In the vicinity of Avenue D and Flatbush Avenue in Brooklyn, PO James Grant spoke discourteously to § 87(2)(b)

Allegation D – Offensive Language: In the vicinity of Avenue D and Flatbush Avenue in Brooklyn, PO James Grant made remarks to § 87(2)(b) based upon race.

Allegation E – Discourtesy: In the vicinity of Avenue D and Flatbush Avenue in Brooklyn, Sgt. Joseph Bienvenue spoke discourteously to § 87(2)(b)

§ 87(2)(b) (BR 08) alleged that while he was handcuffed on the ground, he protested that PO Grant and PO Jarrette had not read his Miranda rights to him. PO Grant allegedly responded by saying, “Fuck you and your rights,” “Shut the fuck up,” and, “Black piece of shit, you made me run for no fucking reason.” § 87(2)(b) alleged that shortly afterwards, additional officers arrived at the scene. § 87(2)(b) began to spit. § 87(2)(b) denied directing his spit towards officers, though he indicated that the officers on scene seemed to believe he was trying to

spit at them. When § 87(2)(b) tried to explain to the officers that he was not spitting on them, Sgt. Bienvenue told him, “Shut the fuck up.”

As discussed above, the investigation was unable to locate witnesses or video footage.

All officers interviewed denied using any profanity towards § 87(2)(b) or hearing any officer do so. All officers denied making any comments to § 87(2)(b) regarding his race, or hearing any officer do so.

§ 87(2)(g)

Allegation I – Discourtesy: Inside the 70th Precinct stationhouse, an officer spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that in the holding cells of the 70th Precinct stationhouse, when he began screaming for medical attention, an officer who he could not see and whose voice he could not identify yelled to him, “Shut the fuck up.”

All officers indicated that the holding cells of the 70th Precinct stationhouse are approximately 20 feet behind the front desk, and that a prisoner would be audible from the holding cells if they were yelling. All officers interviewed denied telling § 87(2)(b) to “Shut the fuck up.”

§ 87(2)(g)

Pod:

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date